

Opinion of SOTOMAYOR, J.

CBP's internal administrative grievance procedure offers an adequate remedy by insisting that "we have never held that a *Bivens* alternative must afford rights to participation or appeal." *Ante*, at 497–498. In the Court's view, "[s]o long as Congress or the Executive has created a remedial process that it finds sufficient to secure an adequate level of deterrence, the courts cannot second-guess that calibration by superimposing a *Bivens* remedy." *Ante*, at 498 (emphasis added).

This analysis drains the concept of "remedy" of all meaning. To be sure, the Court has previously deemed *Bivens* claims foreclosed by "substantive" remedies to claimants that are in significant part administrative. *Bush*, 462 U. S., at 385; see also, *e. g.*, *Schweiker*, 487 U. S., at 424–425. The Court also has recognized that existing remedies need not "provide complete relief for the plaintiff," *Bush*, 462 U. S., at 388, including loss due to emotional distress or mental anguish, or attorney's fees, *Schweiker*, 487 U. S., at 424–425. Until today, however, this Court has never held that a threadbare disciplinary review process, expressly conferring no substantive rights, "secure[s] adequate deterrence and afford[s] . . . an alternative remedy." *Ante*, at 498. Nor has it held that remedies providing no relief to the individual whose constitutional rights have been violated are "adequate" for the purpose of foreclosing a *Bivens* action. To the contrary, each of the alternative remedies the Court has recognized has afforded participatory rights, an opportunity for judicial review, and the potential to secure at least some meaningful relief. See, *e. g.*, *Minneeci v. Pollard*, 565 U. S. 118, 127 (2012) (state tort law); *Ziglar*, 582 U. S., at 148 (petition for writ of habeas corpus or injunctive relief); *Bush*, 462 U. S., at 385.⁷

⁷ Aside from CBP's internal grievance procedure, Agent Egbert contends that the FTCA offers an alternative remedy for claims like Boule's. This Court does not endorse this argument, and for good reason. This Court repeatedly has observed that the FTCA does not cover claims against Government employees for "violation[s] of the Constitution of the